

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on November 29, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On November 29, 2023, a complaint was received by this Agency from Mr. A.A.A. (hereinafter, the complainant) against UTE SUFI VERINSUR, S.A. (hereinafter, the respondent) for not having duly attended to his right of access.

The complainant, an employee of the company UTE ***EMPRESA.1, requested a copy of his time record on May 22, 2023, without receiving a response. On August 10, 2023, he sent a certified postal letter to the head of the Human Resources department reiterating his request for the time record. This postal shipment was received by the entity on October 27, 2023.

The complainant indicates that the respondent records the working hours of its employees using the OCEAN SOFTWARE application and that he needs it to know the number of overtime hours worked for payment. He informs that the requests were sent to the head of the Human Resources department of the company, as it does not have a website and, consequently, does not have a Privacy Policy document or Legal Notice.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent stated that "(...) no request for the exercise of rights related to data protection has been received from the complainant (...) The complainant requested specific information, but never exercised a right of access regulated in the GDPR."

"(...) Despite not having any record of a rights exercise by the complainant, the practice in the entity has been that, once the employment relationship with a worker has ended, the worker's data is blocked in accordance with the requirements of Article 32 of the LOPDGDD."

The respondent adds that

"- The first request made by the complainant once the employment relationship ended via email on May 22, 2023, is limited to a very brief request for a copy of his working hours record, without mentioning any other aspect.

As can be observed in the content of the email, nothing in the request itself allows us to deduce or interpret that the complainant was exercising a right of access recognized in data protection regulations. Mr. A.A.A.'s request was specific to obtaining a document derived from his employment relationship and not what a right of access in its purest form implies: knowing what personal data is processed and what type of processing is carried out by the data controller.

This circumstance suggests that the background of this complaint arises from a labor dispute that is not related to the exercise of one of the rights regulated in Articles 15 to 22 of the GDPR, but rather with a labor disagreement related, as the complainant himself acknowledges in his writing (Seventh section), to the payment for the supposedly worked overtime hours.

It is worth insisting that all information related to the working hours record has been available since June 2023 in the file of the Labor Inspection initiated by the complainant.

- Regarding the second request made via certified letter (delivered on October 27 and not on October 5, 2023, as the complainant maintains), it is established that the letter was addressed to a specific person who, at the time of delivery, was no longer part of the entity. Therefore, it was private correspondence, and as such, and in compliance with the right to the secrecy of communications, there was no legitimacy to open it and know its content, so it was destroyed to prevent access by persons other than the addressee."

THIRD: On January 19, 2024, this Agency requested additional documentation from the respondent to

substantiate the response given to the complainant and thus fulfill the obligation to respond to the request for the exercise of the right of access.

The respondent states that “(...) As mentioned in our previous writing, the complainant, Mr. A.A.A., has not exercised any right of access before UTE Sufi Verinsur, S.A., which is why there is no response sent to the complainant specifying the personal data concerning him that has been processed as well as the type of processing carried out by the entity.”

FOURTH: The result of the transfer procedure indicated in the previous Fact did not allow for understanding the complainant's claims to be satisfied. Consequently, on February 8, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

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The aforementioned agreement granted the respondent the opportunity for a hearing, so that within a period of ten working days, they could present any arguments they deemed appropriate.

The respondent states, in summary, that

“(…) We reiterate what has been stated in previous writings, emphasizing two fundamental issues:

i. This party understands that no request for the exercise of rights related to data protection has been made by the complainant, Mr. A.A.A., as what is actually being requested is the obtaining of a series of employment-related data concerning hours worked.

ii. The background of this complaint arises from a labor dispute that is not related to the exercise of one of the rights regulated in Articles 15 to 22 of the GDPR, but rather with a discrepancy related to the remuneration of the allegedly performed overtime hours.

In no case can the request imply the obtaining of information from the registered personal base data, in the terms established by the data protection regulatory framework. It is, in reality, a request for data derived from the contractual relationship that linked Mr. A.A.A. with the UTE.”

The respondent indicates that “(...) to facilitate access to the exercise of rights by an interested party, the Spanish Data Protection Agency itself provides publicly accessible forms for this purpose.

Additionally, in the internal policy of the entity that regulates the exercise of rights, specific formulas and mechanisms are established to facilitate their exercise free of charge; specifically, in the Privacy Policy for employees that is signed at the time of the incorporation of a new worker, the email address enabled for addressing rights and complaints regarding data protection is specifically established (**EMAIL.1 and **EMAIL.2, respectively). Document No. 1 is attached, which is the Privacy Policy for employees of the entity.”

The respondent indicates that: “In accordance with these criteria, it is confirmed that:

i. The right exercised by the complainant is the right to access data related to the performance of their employment relationship, specifically, to be informed of their time record, so the exercise of this right exceeds the limits established for its exercise.

ii. It is a common practice to resort to the right of access as a much more immediate way to access certain information that cannot be obtained through the channels established to obtain it.

iii. The protection of the allegedly violated right does not fall within the scope of application of personal data protection regulations, so it must be resolved and adjudicated, as has been the case, before the competent labor authority. (...)”

The respondent entity states that, despite what has already been argued, it has proceeded to send a response to the complainant, granting them the right of access to their data, providing a copy of the email sent.

FIFTH: After examining the document submitted by the respondent, it is forwarded to the complainant, so that, within a period of ten working days, they may formulate any arguments they consider appropriate, without submitting arguments within the established timeframe.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by an interested party and investigating, as appropriate, the reasons for them.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the complainant with the appropriate response.

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The result of this transfer did not allow for the satisfaction of the claims of the complaining party.

Consequently, on February 8, 2024, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including "ordering the controller or processor to attend to requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof for compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

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The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of access

The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR, as well as in Articles 13 to 18 of the LOPDGDD.

Regarding the right of access of data subjects to obtain the personal data “concerning them” from the data controller, Articles 12 and 15 of the GDPR, as well as Articles 12 and 13 of the LOPDGDD, are of special application, all of which must be interpreted within the framework established in Recitals 59 to 64 of the GDPR.

Thus, the main content of the right and its scope or content is established in Article 15 of the GDPR, which states the following:

“1. The data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning them is being processed and, where that is the case, access to the personal data and the following information:

- a) the purposes of the processing;
- b) the categories of personal data concerned;
- c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations;
- d) where possible, the envisaged period for which the personal data will be stored or, if not possible, the criteria used to determine that period;
- e) the existence of the right to request from the controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject, or to object to such processing;
- f) the right to lodge a complaint with a supervisory authority;
- g) when the personal data have not been obtained from the data subject, any available information as to their source;
- h) the existence of automated decision-making, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in those cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.”

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2. When personal data is transferred to a third country or to an international organization, the data subject shall have the right to be informed of the appropriate safeguards under Article 46 related to the

transfer.

3. The data controller shall provide a copy of the personal data being processed. The controller may charge a reasonable fee based on administrative costs for any further copies requested by the data subject. When the data subject submits the request electronically, and unless they request that it be provided in another way, the information shall be provided in a commonly used electronic format.

4. The right to obtain a copy mentioned in paragraph 3 shall not adversely affect the rights and freedoms of others.

In accordance with the provisions of these rules, the data controller must establish formulas and mechanisms to facilitate the exercise of the rights of the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and to express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject in connection with their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language. For its part, Article 13 of the LOPDGDD establishes certain guidelines for considering this right as fulfilled by the data controller in specific cases, specifying the following:

“1. The right of access of the affected party shall be exercised in accordance with the provisions of Article 15 of Regulation (EU) 2016/679. When the controller processes a large amount of data relating to the affected party and the latter exercises their right of access without specifying whether it refers to all or part of the data, the controller may request that the affected party specify the data or processing activities to which the request refers before providing the information.

2. The right of access shall be deemed granted if the data controller provides the affected party with a remote, direct, and secure access system to the personal data that permanently guarantees access to its entirety. For these purposes, the communication by the controller to the affected party regarding how they can access this system shall suffice to consider the request for the exercise of the right as fulfilled.

However, the data subject may request from the controller the information referred to in the aspects provided for in Article 15.1 of Regulation (EU) 2016/679 that is not included in the remote access system.

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3. For the purposes established in Article 12.5 of Regulation (EU) 2016/679, the exercise of the right of access may be considered repetitive if exercised more than once within a period of six months, unless there is a legitimate reason for it.

4. When the data subject chooses a means other than the one offered that entails a disproportionate cost, the request will be considered excessive, and the data subject will bear the excess costs that their choice entails. In this case, the data controller will only be required to satisfy the right of access without undue delay.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the available information about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed will not negatively affect the rights and freedoms of others.

V

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in data protection legislation. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, and considering the provisions of the first paragraph of this Legal Basis, from the documentation provided by the parties, it has been established that the claimant, an employee of the company UTE Las Calandrias, requested a copy of their time record from the respondent without receiving a response. In the absence of a response, they reiterated their request by certified postal letter. The requests were directed to the head of the Human Resources department since, as indicated, the respondent does not have a website and, consequently, does not have a Privacy Policy or Legal Notice indicating how or to whom to exercise their rights.

During the processing of this procedure, the respondent has stated, in summary, that "(...) The claimant requested specific information, but never exercised a right of access regulated under the GDPR." However, they sent the claimant an email providing access to their personal data, but without including the requested copy of the time record, which is the reason for the complaint that has led to this procedure.

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In this regard, the provisions of the European Data Protection Board (hereinafter, EDPB) as set out in Guidelines 1/2022, adopted on March 28, 2023, regarding the Application Guide for Article 15 of the GDPR, on the Right of Access of the Data Subject, should be applied, which indicates that "d). Is the request included within the scope of Article 15?

50.

It should be noted that the GDPR does not introduce any formal requirements for individuals requesting access to data. To make an access request, it is sufficient for the requesting individuals to specify that they wish to know what personal data concerning them is processed by the data controller. Therefore, the data controller cannot refuse to provide the data by referencing the lack of indication of the legal basis for the request, especially the lack of a specific reference to the right of access or the GDPR.

For example, to make a request, it would be enough for the requesting individual to indicate that:

- they wish to obtain access to the personal data concerning them;
- they are exercising their right of access; or
- they wish to know the information concerning them that is processed by the controller.

It should be taken into account that applicants may not be familiar with the complexities of the GDPR and that it is advisable to be lenient with individuals exercising their right of access, particularly when it is exercised by minors. As previously indicated, in case of doubt, it is recommended that the data controller ask the data subject to specify the object of the request.

e) Do the data subjects wish to access all or part of the information processed about them?

51.

Furthermore, the data controller must assess whether the requests made by the requesting individuals refer to all or part of the information processed about them. Any limitation of the scope of a request to a specific provision of Article 15 of the GDPR, made by the data subjects, must be clear and unequivocal. For example, if the data subjects literally request "information about the data processed concerning them," the data controller must assume that the data subjects intend to fully exercise their right under Article 15, paragraphs 1 to 2, of the GDPR. Such a request should not be interpreted as meaning that the data subjects wish to receive only the categories of personal data being processed and waive their right to receive the information listed in Article 15, paragraph 1, letters a) to h). This

would be different, for example, when the data subjects wish, with respect to the specified data, to have access to the source or origin of the personal data or to the specified storage period. In such a case, the data controller may limit its response to the specific information requested.

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3.1.2 Form of the request

52.

As previously noted, the GDPR does not impose any requirements on data subjects regarding the form of the request for access to personal data. Therefore, there are, in principle, no requirements under the GDPR that data subjects must observe when choosing a communication channel through which to contact the data controller.

The Judgment of the Court of Justice of the European Union (First Chamber) of May 4, 2023, states:

“1) Article 15, paragraph 3, first sentence, of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation),

must be interpreted as meaning that

the right to obtain from the data controller a copy of the personal data undergoing processing implies that an authentic and intelligible reproduction of all such data is provided to the data subject. This right includes the right to obtain copies of extracts from documents, or even entire documents, or extracts from databases, which contain, among others, such data, if the provision of such a copy is essential to enable the data subject to effectively exercise the rights conferred on them by that Regulation. It should also be emphasized the need to take into account, in this regard, the rights and freedoms of third parties.

2) Article 15, paragraph 3, third sentence, of Regulation 2016/679

must be interpreted as meaning that

the concept of “information” it refers to exclusively concerns the personal data of which the data controller must provide a copy in accordance with the first sentence of that paragraph.”

Therefore, according to the interpretation of the right of access made by the Court of Justice of the European Union, as well as what is established in the aforementioned Guidelines 1/2022, the claiming party has exercised the right of access regarding the personal data that concerns them, and the responding party would have to provide the claiming party with their right of access under the terms provided in the GDPR.

It is then appropriate to delve into the substance of the matter and analyze whether the reasons put forward by the responding party for not providing the requested data are valid.

In this regard, it is pertinent to apply the provisions of the aforementioned Guidelines 1/2022, whose point 4.2 specifies the scope of the personal data encompassed by the right of access, specifically mentioning the data that concerns the data subject, warning against the danger of making a “too restrictive” interpretation to automatically deny access.

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These Guidelines establish the following (the underlining is ours):

“4.2 The personal data to which the right of access refers

In accordance with Article 15, paragraph 1 of the GDPR, ‘the data subject shall have the right to obtain from the controller confirmation as to whether or not personal data concerning him or her is being processed and, where that is the case, access to the personal data and to the following information’

(the underlining is ours).

Consequently, it is appropriate to uphold the complaint since, despite having responded to the complainant, the response provided by the entity being complained about does not adequately address the right properly exercised.

On another note, although it is appropriate for such a request to be directed to the address declared by the controller for the purpose of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 or to the central office, it is considered that the receipt of the request by any department or branch of the controller is a valid destination for the same, in accordance with Article 12 of the LOPDGDD, which states: 'The controller shall be obliged to inform the data subject about the means available to exercise the rights that correspond to him or her. The means must be easily accessible to the data subject. The exercise of the right may not be denied solely on the grounds that the data subject has chosen another means.'

Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, state that

"54. It should be noted that the controller is not obliged to respond to a request sent to a random or incorrect email address (or postal address) not directly provided by the controller, nor to any communication channel that is clearly not intended to receive requests related to the rights of the data subject, if the controller has provided an appropriate communication channel that can be used by the data subject."

In the case examined, the postal mail used by the complainant was the mail of the human resources department of the entity being complained about, which cannot be classified as random or incorrect, nor was it not provided by the controller, nor is it a channel that is clearly not intended to receive requests related to the rights of the data subjects.

In light of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the complaint filed by Mr. A.A.A. considering that the provisions of Article 15 of the GDPR have been infringed and to urge UTE SUFI VERINSUR, S.A. with NIF U11751740, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the requested right, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period.

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Failure to comply with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to Mr. A.A.A. and to UTE SUFI VERINSUR, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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